

		directly affected by it, in order to make it public.” (<i>Gilmer v. Lime Point</i> (1861) 18 Cal. 229, 229.) The SAC alleges DFPI is an agency of the State of California and that DFPI unlawfully seized money from FVE’s escrow account. (SAC, ¶¶ 2 and 79.) Plaintiff alleges DFPI used the money for its own purposes, converted the majority of the money to pay itself “investigative costs,” and “absconded with the funds.” (<i>Id.</i>, ¶¶ 56 and 79.) However, Plaintiff also alleged DFPI used a small portion to pay restitution to victims of the misappropriation. (<i>Id.</i>, ¶ 56.) Plaintiff sufficiently alleged public use by a public actor. Accordingly, the demurrer on this ground is overruled. The Court notes DFPI did not demur to this cause of action on the ground that it is beyond the scope of the Court’s November 10, 2025 Order sustaining DFPI’s demurrer to the cause of action for negligence alleged in Plaintiff’s First Amended Complaint. (<i>Harris v. Wachovia Mortgage, FSB</i> (2010) 185 Cal.App.4th 1018, 1023.) The case management conference is continued to October 26, 2026 at 10:00 a.m. in Department C27. DFPI is directed to give notice.
102	2024-01386407 Broomall vs. Fountain Valley Escrow, Inc.	Case Management Conference The case management conference is continued to October 26, 2026 at 10:00 a.m. in Department C27.